- Emergency under this article can be imposed only on certain grounds signifying Constitutional breakdown. For example, if no party or coalition is able to generate majority support after the Legislative Assembly elections resulting in a hung Assembly; if Constitutional directions from the Central Government are disregarded by the State Government or State Government actively assists in internal subversion.
- Emergency cannot be imposed on certain grounds as they do not constitute Constitutional breakdown. For example, a mere law and order problem cannot be construed as Constitutional breakdown. And, emergency cannot be imposed if the ruling party in the state lost heavily in the Parliamentary Elections.
- The Governor's report on the breakdown of the Constitutional machinery in the state must be placed in Parliament. The report should be a thorough one detailing the exceptional situation in the state.
- The Legislative Assembly of a state cannot be dissolved before the proclamation of the president is approved by both Houses of the Parliament.
- The court has power to determine the validity of the imposition of emergency under article 356 of the Constitution. If the court finds the grounds of imposition unconstitutional it can and will nullify the proclamation and restore the dismissed State Government to life. To put it succinctly the Supreme Court possesses the power of Judicial Review over the imposition of article 356.
- Ever since the judgment was delivered by the Supreme Court, the State Governments ruled by opposition parties have been protected from arbitrary dismissal by the Central Government with a different ruling party.

Dr. Ambedkar called this Article 356 as a dead letter to the Constitution as it negates the federal characters of the Indian Political System and the popular sovereignty of an elected government.

### 5.5.5 Venkatachaliah Commission


M.N Rao Venkatachaliah

The National Commission to review the working of the Constitution (NCRWC) also known as Justice Manepalli Narayana Rao Venkatachaliah Commission was set up by a resolution of the NDA Government of India led by Atal Bihari Vajpayee on 22 February 2000 for suggesting possible amendments to the Constitution of India.

Quotable quote

**Dicey:** "A federal state is nothing but a political contrivance intended to reconcile national unity with maintenance of states' rights".



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